Phi Sigma Pi National Honor Fraternity
Beta Rho Chapter
Ratified February 26, 1995
Revised 9/2/2025 by Sara Haworth

Table of Contents

ARTICLE I:	**Name**
ARTICLE II:	**National Affiliation**
ARTICLE III:	**Purpose**
ARTICLE IV:	**Membership**
ARTICLE V:	**Advisors**
ARTICLE VI:	**Chapter Officers and Elections**
ARTICLE VII:	**Executive Board**
ARTICLE VIII:	**Committees**
ARTICLE IX:	**Meetings**
ARTICLE X:	**Finances**
ARTICLE XI:	**Disciplinary Actions of the Chapter**
ARTICLE XII:	**Parliamentary Authority**
ARTICLE XIV:	**Ratification**
ARTICLE XV:	**Alcohol & Drug Policy**
ARTICLE XVI:	**Risk Management & Hazing Policy**
ARTICLE XVII:	**Dissolution of Chapter**
ARTICLE XVIII:	**Virginia Policy**

Phi Sigma Pi National Honor Fraternity
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Ratified February 26, 1995
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The Beta Rho Chapter Bylaws shall contain governing policies specific to Beta Rho and shall be adhered to in conjunction with other required policies for the Beta Rho Chapter of Phi Sigma Pi.

ARTICLE I: Name
The name of this organization shall be the Beta Rho Chapter, Phi Sigma Pi National Honor Fraternity, Beta Rho Chapter.

ARTICLE II: National Affiliation
Beta Rho Chapter is a chartered member of Phi Sigma Pi National Honor Fraternity.

ARTICLE III: Purpose
Beta Rho shall be an honor fraternity for students at James Madison University founded upon the basis of superior scholarship, with the avowed purpose of advancing academic, professional, and social ideas.

ARTICLE IV: Membership
Section 1:

A. Non-Discrimination Statement

   Membership in this organization is open to all JMU students and will not be restricted on the basis of age, ability, ethnicity, gender, national origin, race, color, religion, veteran status, sexual orientation, or political affiliation except in circumstances outlined in federal and state laws.

B. Persons of good academic standing and excellent character shall be eligible for membership in Beta Rho Chapter (See Article IV: Membership; Section 2)

Section 2:
Active membership in Beta Rho Chapter will be given to undergraduate students of James Madison University who:

(a) have completed one semester of college work and who have at least twelve (12) JMU credit hours, or have completed one semester (12 credits) of college work at an institution of higher learning
(b) are students with at least 2 semesters remaining, not including the semester of Initiation, and
(c) have achieved at least a 3.00 Cumulative Grade Point Average (4.00 scale where a 4.00=A).

No more than two of the requirements in subsection A, B, or C above may be waived for an individual at the discretion of the Chapter.

Section 3:

A. Potential New Members will be randomly assigned to the power point not according to last name by a computer-generated system free from bias.
B. Candidates for the Initiation Program must receive three-fourths (75%) of the brotherhood's **votes cast** to be extended a bid for the Initiation Program.
    a. This may not be rounded up. The final vote count must be 75% or greater.

Section 4:

All new Active Members of Beta Rho Chapter must meet the Initiation requirements of Beta Rho Chapter. Their Membership will be approved upon conforming to National guidelines as stated in Article IV: Section 2 of the National Constitution. Subsequently, to obtain membership, the Initiate shall:

A. Complete brother interviews— a number equal to fifty percent of the Active brotherhood, never to fall below 20 or exceed 35 interviews.
B. Interview all ten (10) Beta Rho Executive Board Members.
C. Be subject to an Initiate Review at the discretion of the Executive Board in the event of a policy/program violation or concern voiced by the Brotherhood.
D. An initiate's progress of the Initiate requirements will be displayed to the Brotherhood during the middle of the semester at the Mid-Way Check-In. This event will also share the key takeaways from the Initiate Advisor's conversations with each Initiate and how the Brotherhood can continue supporting them.
E. An Initiate must be voted in affirmation by three-fourths (75%) of the brotherhood at final voting in order to be inducted into the Chapter.

Section 5:

First-semester Active Status

A. Upon induction into the brotherhood, first-semester brothers shall not have the option to go inactive unless deemed an extenuating circumstance by the Executive Board. If the brother desires to go inactive, he or she will have to convene with the Executive Board to request inactive status.
    a. Extenuating circumstances shall be determined by the Executive Board. These circumstances may include but are not limited to:
        i. School or course load
        ii. Family matters
        iii. Mental or physical health
        iv. Finances
    b. Each initiate class shall be informed of this bylaw during their initiate class meetings, when learning about Phi Sigma Pi and the brotherhood so as to avoid any confusion and to prepare them for their first semester as brothers.

Active Membership requirements

A. To remain an Active Member in good standing, the Member shall:

1. Pay National Dues and Fees,
2. Pay Chapter Dues and Fees,
3. Serve on at least one permanent Committee per semester,
4. Maintain the Grade Point Average required when inducted,
5. Sign a Bylaw Agreement stating that Members have read the Bylaws of Beta Rho before their first new Member voting.
6. Complete the Attendance Requirements outlined in Part B

B. Attendance Requirements for Active Brothers:

1. **Chapter Meetings**:

(a) Seventy-five percent (75%) of all regular and special Chapter or Committee Meetings,

(b) Active Members are allotted a maximum of two unexcused absences.

2. **Mandatory Events**:

(a) New Member Voting, Bid Night, Pinning, Brother Night, Mid-Semester Check-In, Final Voting, Brother Review, Initiate Review, and Formal Inductions

1) Brother Night is a fellowship event during which Members share how the organization has helped them personally and professionally
2) Brothers must be notified 2 weeks in advance of all mandatory events.

(b) Seven minutes of leniency will be given past the set start time of all mandatory Events. After seven minutes of tardiness, attendance will not be counted and the absence shall be marked unexcused.

3. **Recruitment Events**:

(a) Active Members must attend the necessary number of Recruitment Events for the Recruitment Period

(b) The Recruitment Period will consist of a minimum of four (4) recruitment events and two (2) information sessions.

i. Information sessions will be attended only by members of the Executive Board and Committee Chairs.

(c) Active Members must attend a minimum of two (2) Recruitment Events

(d) Active Members are allotted a maximum of one (1) unexcused absence during the Recruitment Period.

(e) In order to participate in New Member Voting, Inactive Members must follow the guidelines outlined in Article IV: Membership; Section 5, Part F.

4. **Initiate Events**:

(a) Active Members must attend a minimum of three (3) Initiate Meetings or Events each semester

5. **Scholarship Events:**

(a) Active Members must attend a minimum of three (3) Scholarship Events as determined by the Scholarship Chair, one (1) of which must be held internally through Phi Sigma Pi.

(b) Scholarship Events held externally from Phi Sigma Pi must be at least one hour in length and require the approval of the Scholarship Chair to be accepted

6. **Service Events:**

(a) Active Members must attend a minimum of three (3) Service Events as determined by the Service Chair, one (1) of which must be held internally through Phi Sigma Pi.

(b) Service Events held externally from Phi Sigma Pi must be at least two hours in length and require the approval of the Service Chair to be accepted.

7. **Fundraising Events:**

(a) Active Members must attend a minimum of three (3) Fundraising Events as determined by the Fundraising Committee.

(b) One point can be earned by attending a planned event or by bringing at least one person who is not a Member of Phi Sigma Pi to a Fundraising Event.

(c) The point values for larger events are at the discretion of the Fundraising Committee

8. **Brother-Bonding Events:**

(a) Active Members must attend a minimum of one (1) planned Brother-Bonding Event as determined by the Social Chairs and/or Brother Historian.

9. **Philanthropy Events:**

(a) Active Members must attend a minimum of two (2) planned Philanthropy Events as determined by the Philanthropy Chair.

i) This philanthropy Event can also be counted toward another point requirement if there is an agreement between the Philanthropy Chair and the respective point Chair.

10. **Committee Events:**

(a) Active Members must obtain a minimum of two (2) Committee Points as determined by the Committee Head

(b) Points may be obtained by:

(i) Assisting in planning an event

(ii) Setting up an event

(iii) Cleaning up an event

(iv) Promoting an event

(v) Or at the discretion of the Committee Head

(c) Points may be transferred from another non-assigned Committee, with approval from the assigned Committee Head

(d) Committee Heads may refer approval of points to the Vice President

11. **Point Reduction Application**

(a) Active Brothers have the opportunity to fill out a point reduction application at the beginning of each semester, citing significant struggles in their lives.

(i) Significant struggles include financial inconveniences, scheduling issues, medical reasons, etc.

(ii) The form may be reopened during the semester for candidates by the Executive Board on an emergency basis.

(b) Brothers may ask for any number of points to be reduced in any category, but Brothers must obtain at least one (1) point in every category.
(c) The Treasurer has the responsibility of sending out the form to the brotherhood at the beginning of each semester.
(d) The Executive Board must review each brothers' case anonymously and come to a consensus for the amount of points will be reduced for that brother. The Executive Board may decline, accept, or repeal point reduction applications.

C. Excused Absences

1. For **Chapter Meetings**:

(a) Professor or class-mandated review sessions
(b) Classes and labs scheduled by the University
(c) GRE's, MCAT's, DAT's, etc.,
(d) Family emergencies
(e) Sport club practices and University sponsored events (band, chorus, etc.)
(f) Work previously scheduled during the Chapter Meeting time
(g) Emergencies (illness, death in the family, etc.)
(h) Any other extenuating circumstance determined by the Executive Board.
(i) Events held by other clubs and organizations, including fraternities and sororities but excluding club sports, do NOT constitute excused absences. Games, competitions, and/or tryouts held by a club sport shall be considered an excused absence while practices remain unexcused. This will take effect Fall semester 2002 and will affect all new Members from that point forward.

2. For **Mandatory Events**:

(a) Classes or labs.
(b) Review sessions scheduled by the instructor.
(c) Illness/death in the family.
(d) Any other extenuating circumstance as determined by the Executive Board.
(e) Work will not count as an excused absence to a mandatory Event provided that the Executive Board informs the Brotherhood of the date and time of the event no less than two months in advance.

3. Notification for excused absences must be given to the President, Vice-President, or Secretary at least twenty-four (24) hours prior to the event in question

D. Consequences for failing to meet attendance requirements are as follows:

1. **Chapter Meetings**:

(a) If an Active Member fails to meet the attendance requirements of Chapter Meetings as outlined in Article IV: Section 5, Part B, Number 1, they must plan an additional Scholarship, Fundraising, or Service Event with the approval of the designated Committee Chair at least one week in advance OR pay a $20 fine for each missing event.

2. **Mandatory Events**:

(a) If an Active Member has an unexcused absence from a mandatory Event as outlined in Article IV: Section 5, Part B, Number 2, they must plan a Social,

Service, Scholarship, or Fundraising Initiate Event with the approval of the Initiate Advisor at least one week in advance, OR, plan an extra Service, Scholarship, Social or Fundraising Events for the Brotherhood with the approval of the designated Committee Chair at least one week in advance, OR, pay a fine of $50 for each unexcused absence.

3. **Initiate/Recruitment Events**:

(a) If an active member fails to reach the minimum events as outlined in Article IV:IV Section 5, Part B, Number 3, they must pay a penalty value of $20 for each event missed.

(b) If an Active Member fails to reach the minimum points as outlined in Article IV: Section 5, Part B, Number 4, they must pay a penalty value for each point they failed to earn: 1 point-$10, 2 points-$15, 3 points-$20.

4. **Scholarship/Service/Brother-Bonding/Philanthropy/Committee Events**:

(a) If an Active Member fails to reach the minimum points as outlined in Article IV: Section 5, Part B, Numbers 5, 6, 8, 9, and 10, they may attend or plan and participate in an extra event for each event they are missing with the approval of the Scholarship Chair/Service Chair/Social Chairs/Philanthropy Chair, Brother Historian, and Committee Head at least one week in advance. If the active member does not attend or plan an event, they will be fined $10 for the first missed point and an additional $5 for each missed point after.

5. **Fundraising Events**:

(a) If an Active Member fails to reach the minimum points as outlined in Article IV: Section 5, Part B, Number 7, they may pay a penalty value for each point they failed to earn: 1 point-$10, 2 points-$15, 3 points-$20

6. If an Active Member fails to meet any of these consequences, they will be automatically placed on probation.

E. Membership Probation

1. If a Member fails to meet the attendance requirements, the Member shall be placed on Membership probation until the requirements set forth by the consequences in Article IV: Section 5, Part D have been met. The Member may be further disciplined by the Beta Rho Chapter if the Member fails to meet the probation requirement set forth by the Executive Board. These requirements will be determined on a case-by-case basis.

2. The terms of Membership Probation are as follows:

(a) The Member cannot vote, motion, or debate on any Chapter motions

(b) The Member cannot be a Big Brother, and

(c) The Member must pay local and National dues

(d) The Member will remain on probation until the requirements in Article IV: Section 5, Part C have been met.

F. Local Inactivity

1. Each Member of the Beta Rho Chapter shall be granted one semester of unquestioned local inactivity that may be used at any time. The Executive Board reserves the right to deny a second semester of local inactivity to any Member except in the instance of extenuating circumstances.

(a) Acceptable reasons for a second semester of local inactivity are as follows:

i) Family death or illness

ii) Personal illness

iii) Student teaching

iv) Circumstances beyond the individual's control as deemed legitimate by the Executive Board.

2. The terms of local inactivity are as follows:

(a) The Member must notify the Executive Board before New Member Voting in order to be exempt from local dues. Any further requests for local inactivity will be held on a case-by-case basis by the Executive Board.

(b) The Member must pay National dues. These are the only dues required for Inactive Brothers.

(c) The Member cannot vote, motion, or debate on any Chapter motion, with the exceptions listed in parts (d), (e), and (f)

(d) In order to participate in New Member voting the Member must attend at least 75% of Recruitment Events.

(e) In order to participate in Initiate voting (Final Voting and Initiate Review) the Member must attend at least two (2) Initiate Events prior to the voting event in which they wish to participate.

(f) Members may participate in position and bylaw voting if they are 1) present for the entirety of the speeches/debate and 2) have one (1) semester remaining as a Brother.

(g) The Member cannot take a Little Brother.

(h) The Member cannot serve on a Committee or hold a position.

3. The attendance policy will determine a Member's standing for the following semester with the exception of Recruitment Events and Mandatory Events attendance requirements. If a Member fails to meet these requirements, that Member may immediately be brought up for probation for the current semester.

Section 6:

Membership in this organization is open to all JMU students and will not be restricted on the basis of age, ability, ethnicity, gender, national origin, race, color, religion, veteran status, sexual orientation, gender identity, or political affiliation except in circumstances outlined in federal and state laws.

Section 7:

Super Senior Status:

A. Fifth-year Seniors and graduate students who joined the brotherhood in their undergraduate years in Beta Rho (or another Chapter) have the option of declaration of Super Senior Status

B. Super Senior Status includes:

1. Exemption from Local Dues and Fees,
2. Exemption from the attendance policy,
3. Must still pay National Dues and Fees.

C. Should a Member opt for this privilege, the Member must notify the Executive Board by New Member Voting

D. In order to participate in New Member voting the Member must attend at least 75% of Recruitment Events.

E. In order to participate in Initiate voting (Final Voting and Initiate Review) the Member must attend at least two (2) Initiate Events.

F. A **declared** Super Senior may not be an Officer or a Committee Chair

G. A **declared** Super Senior may not take a Little Brother.

Section 8:

Deceased Brothers:

In the event that an Active or Inactive Brother should pass away while still a Member of Phi Sigma Pi, they shall become a Member of the Omega Class. The Omega Class shall be reserved for the deceased Brother(s) (Active or Inactive) and will serve as a memorial to their name.

Section 9:

Transfer Brothers:

In the event that a Member from another Chapter transfers to JMU and the Beta Rho Chapter:

A. The transfer member will be encouraged to attend recruitment and must submit an application by the appropriate deadline.

B. The transfer member must be extended a bid through new member voting.

C. The transfer will be put in for big/little picking with the new Initiate Class

D. The transfer Member will be a part of the Initiate program for the first month after they are extended a bid.

- The member will be required to complete half the number of interviews as the initiate class.
- The member will be required to attend weekly initiate meetings during that time.
- The member will be required to take the local chapter quiz only.

E. The transfer member will undergo final voting 1 month after they have accepted their bid.

- The member must pay national and local dues before final voting.
- The member may not motion, debate or vote until officially accepted as a brother. The member will be inducted during the induction ceremony with the initiate class.
- The member will be considered a member of that induction class (ex; Beta Lambda)

F. The transfer member may fully undergo the initiate program if they wish, meaning they will complete the entire initiate process again and be voted on at the end of the semester. This will be communicated to the semester's Initiate Advisor.

Section 10:

Honorary Brothers:

Honorary Brothers are individuals who have demonstrated great commitment and service to Beta Rho Chapter and who exemplify the ideals of the Tripod, but are ineligible to become Collegiate Members

themselves. The extension of an offer of Honorary Brotherhood is a symbolic gesture of gratitude extended by Beta Rho Chapter, and should be understood as such.

A. Candidates for Honorary Brotherhood must receive three-fourths of the brotherhood's **votes cast** to be extended an offer of Honorary Brotherhood.

B. Candidates who accept the offer of Honorary Brotherhood will undergo *the Ritual*, but be exempt from Beta Rho's Initiation Program.

1. *The Ritual* may be a separate event from that of the current Collegiate Initiate Class or the two may be joined. This decision may be made by the current Initiate Class's Initiate Advisor and the Chapter President.

C. Further exemptions and restrictions include:

1. Exemption from paying National or Local dues
2. Exemption from any attendance or points requirements
3. Exemption from Committee service
4. Honorary Brothers will not be able to participate in any voting procedures
5. Honorary Brothers will not be allowed to attend Phi Sigma Pi Formal, Semi-Formal, or other events decided at the discretion of the President
6. Honorary Brothers will not be allowed to become a Big Brother

D. Honorary Brothers will be able to choose the extent of their involvement with Phi Sigma Pi at large and Beta Rho Chapter, in particular:

1. Honorary Brothers will be able, but not required, to attend only mandatory Chapter Meetings
2. Honorary Brothers will be able, but not required, to attend subsequent Rituals and Inductions
3. Honorary Brothers will be extended the option of becoming a Little Brother to an existing Collegiate Member
    i. Honorary Brothers will become Little Brothers following the same Little picking procedure as used for Collegiate Members
4. Honorary Brothers will be made knowledgeable of current Beta Rho events and will receive the Beta Rho newsletter

E. If an individual is inducted as an Honorary Brother and later becomes eligible for Collegiate membership, their status as Honorary Brother will in no way have bearing on their eligibility for full Collegiate membership.

F. Honorary Brothers will become a part of the Alpha Omega Initiate Class

ARTICLE V: Chapter Advisors

Section 1:

JMU Policy No. 3101 (Faculty Advisers to Student Organizations):

The adviser shall be a full or part time faculty or staff member at James Madison University. The adviser will assume those responsibilities as outlined in this constitution and/or found in University Policy No. 301 entitled "Faculty Advisers to Student Organizations".

Section 2:

Advisor Selection:

The Chapter Advisor(s) of Beta Rho Chapter shall be appointed or elected by the Members of Beta Rho Chapter following a nomination by either an Executive Board Member or a Chapter Member in the manner approved by James Madison University.

Section 3:
Advisor Role:
The Chapter Advisor(s) shall serve the best interests of the Phi Sigma Pi, Beta Rho Chapter, its Members, and reasonably attempt to ensure that all business conducted by Beta Rho Chapter meets James Madison University policies. At least one (1) of the sheltering institution's staff shall be designated official Chapter Advisor. The Chapter Advisor shall refer to James Madison University Policy #III: 05:01 concerning their duties.

Section 4:
Advisor Removal:
The Chapter Advisor(s) may be removed following the same criteria and process as Chapter Officers.

ARTICLE VI: Chapter Officers and Elections
Section 1:
All Officers shall possess the minimum requirements of an Active Member, be Members in good standing, and have completed at least one full semester of Active Brotherhood (not including the semester of Initiation).

Section 2:
Chapter Officers shall be elected and installed each calendar year to serve for the ensuing term of office.

Section 3:
Financial Security:
To ensure financial security, both the President and Treasurer shall be granted access to bank account, Venmo, and other financial institution logins and information. The President and Treasurer shall review these statements monthly; the officers are permitted to review finances additionally as needed.

Section 4:
The Officers of Beta Rho Chapter shall include:
President, Vice President, Secretary, Treasurer, Initiate Advisor, Parliamentarian, Initiate Historian, Brother Historian, and Brothers at Large. The duties for all the Officers except Parliamentarian, Brother Historian, and Initiate Historian are listed in the National Constitution. The duties for the officers of Beta Rho are as follows:

A. President:
    1. Preside at all meetings of the Chapter
    2. Have removal power of all non-elected positions in the Chapter subject to the approval of the Executive Board
    3. Be recognized as the official representative of the Chapter

4. Serve as the Chairperson of the Executive Board
5. Be responsible for advising the Secretary on all correspondence, in accordance with the Chapter
6. Call special meetings of the Chapter
7. Prepare the agenda in consultation with the Executive Board
8. Be responsible for informing the Chapter about the National activities of Phi Sigma Pi
9. Be a voting Member of the Executive Board
10. Serve as the Risk Management Advisor for the Chapter

B. Vice President:

1. Works with Treasurer to award Megan Scholarship
2. Works with Treasurer to award Subrosa fund as funds allow
3. Be responsible for all duties of the President in the President's absence;
4. Act as coordinator and serve as an Ex-officio Member of the Chapter's Standing Committees, excluding the Executive Board
5. Accept all official responsibilities and obligations deemed necessary by the President;
6. Appoint all non-elected positions in the Chapter with the approval of the Executive Board
7. Solicit reports from all the Chapter Officers and Committees/Committee heads
8. Be a voting Member of the Executive Board.

B. Secretary:

1. Keep a record of all proceedings of the Chapter and Executive Board meetings of the Chapter and enter such minutes in a permanent record
2. Be responsible for the distribution of the minutes to the Executive Board before the next regularly scheduled meeting and have the minutes available for review by the membership of the Chapter
3. Be responsible for all correspondence pertaining to theChapter and correspondence distribution to those designated
4. Preserve all National and Chapter forms, documents, records, Chapter Bylaws, The Ritual Ceremonies Book, and other documents and supplies
5. Submit to the National Office all forms and Chapter Bylaws by the required due dates
6. Be responsible for the attendance records of the Chapter
7. Maintain for the Chapter the approved Fraternity Roll Book requiring the signatures of all Members at the time of the Member's Induction. All Members shall be numbered sequentially in the Chapter Roll
8. Be responsible for compiling and submitting all required Membership lists and other required affiliation documentation to the appropriate divisions of the sheltering institution to ensure continued affiliation
9. If necessary, choose, with the approval of the Executive Board and a majority vote of the Active Members present at a regular meeting, an Assistant Secretary to aid in performing the duties of the office

10. Preside over the meetings of the Chapter in the absence of the President and the VicePresident
11. Be a voting Member of the Executive Board.

D. Parliamentarian:
    1. Advises Beta Rho Chapter to ensure that all National, Chapter, University, local, state, and/or federal policies are being upheld.
    2. Advises Beta Rho Chapter to ensure that the Chapter is in compliance with Robert's Rules of Order, latest edition.
    3. Review the Chapter Bylaws and submit proposed changes to the Chapter for approval.
    4. Maintain and update the Beta Rho Operating Procedures
    5. Be a voting Member of the Executive Board
E. Brother Historian:
    1. Document and encourage all Phi Sigma Pi traditions and events (i.e. slideshows).
    2. Educate the Brotherhood on the history of Phi Sigma Pi and Beta Rho.
    3. Make all necessary room arrangements and obtain all necessary approval for Chapter, Executive Board, and special meetings and events.
    4. Leads the Historian Committee to ensure that all responsibilities under the Historian Committee are met.
    5. Keep, collect and preserve an accurate history of the Chapter
    6. Be responsible for placing news items concerning the Chapter in local and collegiate publications
    7. Provide the National Office with historical items of the Chapter at the close of the academic year at the Chapter's discretion
    8. Be a voting Member of the ExecutiveBoard.
F. Initiate Historian:
    1. Teach Phi Sigma Pi history to the Initiates (i.e. reviewing study guides during meetings).
    2. Assist the Initiate Advisor in grading the National exams and checking Initiate books.
    3. Review Phi Sigma Pi history with Initiates prior to the National exam
    4. Mentor the Historians of the Initiate Class.
    5. Order *The Scholar's Province* at the beginning of each semester for the new Initiate Class
    6. Will be responsible for organizing Big Reveal
    7. Will not be present at New Member Voting until the votes are ready to be counted
    8. Will inform the Initiate Class of the bylaw that disallows first-semester brothers from going inactive. If a first-semester brother desires to go inactive, the brother must convene with the Executive Board to be approved for Inactive Brother status.
G. Initiate Advisor:

1. Shall have the additional responsibility of maintaining the Beta Rho Chapter Handbook.
2. Will not be present at New Member Voting until the votes are ready to be counted.
3. Will maintain the Little Brother picking list that organizes all of the Brothers in terms of picking a Little Brother.
    (a) This list will begin with the oldest Brother with the earliest graduation date in the oldest Initiate Class without a current Little Brother and will end with the youngest Brother with the latest graduation date in the youngest Initiate Class who already has one or more Little Brothers.
        i. The priority for Little Brother picking shall be as follows: Has or does not have a Little Brother, seniority of Initiate Class, date of graduation, then age of brother.
        ii. Brothers must meet Active Brother recruitment attendance requirements (2/4) to be included in the Little Brother picking list. Active Brothers who did not meet recruitment requirements will not be included in the Little Brother Picking list.
    (b) This list may be altered due to the following uncontrollable circumstances of a Little Brother: death, withdrawing from JMU, or any other situation determined "uncontrollable" by the Executive Board.
    (c) Through these uncontrollable circumstances, the Big Brother will be placed back on the top of the "Brothers with one little" list if the Little Brother has already completed the Initiation Program.
    (d) If the Little Brother has not completed the Initiation Program, and has left due to these uncontrollable circumstances, the Big Brother will be put back on the list of "Brothers with no little" in the order specified in 2 (a).
4. Will be responsible for the purchasing of desserts to present to the Initiate Class immediately following bid extensions
    (a) The decision of buying desserts following the extension of bids to incoming Initiates will be made by the Executive Board upon the conclusion of New Member Voting.
    (b) Should the Executive Board decide not to purchase desserts to present immediately following the extension of bids, then the Initiate Advisor is subsequently released from the aforementioned responsibility.
5. Be responsible for reviewing and updating the Initiation Program of the Chapter
6. Be responsible for maintaining and upholding the integrity of the Initiation Program of the Chapter in relation to the rules of the sheltering institution, and any rules established by the Chapter
7. Be responsible for the planning and implementation of the Initiation Program approved by the Members of the Chapter at the meeting prior to the first meet night held by the Chapter

8. Report Initiation activities and send a complete detailed description of the Initiation Program to the National Office by the specified due dates
9. Be responsible for ensuring that all newly Inducted Members be taught the Fraternal grip and word
10. Be a voting Member of the Executive Board

H. Treasurer:

1. Keep record of the Megan Scholarship Fund
2. Work with the Vice president to award the Megan Scholarship based on available funding
3. File tax form 990 (Return of Organization Exempt From Income Tax) on behalf of Phi Sigma Pi Beta Rho Chapter by May 15th, five months after the end of our fiscal period
4. Keep record of the Subrosa Fund
5. Work with the Vice President to award Subrosa Fund as funds allow and based on potential nominations and requests
6. Create and manage the Point Reduction Application process.
7. Report at the Chapter meetings the financial status of the Chapter accounts, including, but not limited to, delinquent Dues
8. Remit appropriate money to the National Office by the specified due date
9. Propose, in conjunction with the Finance Committee (Fund-Raising Committee), the budget for the next fiscal year
10. Receive and record all moneys of the Chapter and provide for the moneys' security
11. Adhere to the budget approved by the Executive Board and the membership of the Chapter
12. Pay all debts and expenses
13. Maintain a record of receipts and expenditures and balance the accounts
14. Serve as an Ex-officio Member of the Finance Committee (Fund-RaisingCommittee) and all other general Chapter purpose monetary generating Committees
15. Provide explanations to questions posed by the Financial Review Board (Group conducting the Chapter's Annual Financial Review) for the completion of the Financial Review Board's report
16. Preside over the meeting of the Chapter in the absence of the President, Vice President and Secretary
17. Be a voting Member of the Executive Board.

I. Brothers at Large (2)

1. Two (2) Chairs shall serve as the Brothers at Large (BALs).
    (a) These individuals shall act either independently or with one another to their discretion as they see fit to hear concerns amongst the brotherhood.

(b) The BAL will be the first position elected each semester. See Article VI: Section 6 for BAL election procedure.

2. The BALs attend Executive Board Meetings as non-voting Members of the Executive Board. They will maintain a neutral voice to present all perspectives on issues.
3. The BALs should be utilized when Members/Initiates have a problem, complaint, or suggestion regarding the Beta Rho Chapter and do not feel comfortable speaking to any Executive Board Member.
4. The BALs hold event(s) throughout the semester encouraging conversations about concerns and the future of the Chapter
5. The BALs will maintain a confidential living document of anonymous concerns (no names or identifiable characteristics can be included) to keep track of issues and how they were constructively handled. This document shall be passed to each BAL upon their installment.
6. The BALs may not vote, motion, or debate on any Chapter motion with the exceptions of New Member Voting, Initiate Review, Final Voting, and Brother Review.
    (a) Brothers at Large may propose new bylaws to the brotherhood, but may not vote on such Bylaw Proposals to maintain neutrality.

Section 5: Executive Board Brotherhood Review

A. There shall be two executive board review sessions per semester. The first review will be held during the initiate mid-semester check-in and the second at the initiate final voting.
    i. Attendance will be mandatory at both chapters. If a brother does not have an excused absence, they will be issued a $50 fine.
B. All executive board members must leave the room except the BALs and the Parliamentarian.
C. The brotherhood will sign a Subrosa contract prior to starting the debate. While the QR code for Subrosa is on the screen, there will be two additional QR codes for the brothers to fill out if they do not feel comfortable participating in the debate. One form will be for concerns regarding the BALs, and responses reviewed by the Parliamentarian. The second form will be for all other executive board members, with responses reviewed by the BALs.
    i. Both forms will record Brother's emails in case further clarification is needed.
D. Once Subrosa is signed, the Parliamentarian will motion to open review on each member of the executive board.
    i. The order of debate shall go from President, Vice President, Secretary, Treasurer, Brother Historian, Initiate Advisor, and then Initiate Historian.
E. If the motion is seconded, the Brotherhood will begin a pro/con review, relating concerns or positive feedback to the Ideal Brotherhood Characteristics or the legs of the tripod.
    i. After the above executive board members have been reviewed, the BALs shall leave the room and the Parliamentarian will lead the debate for each BAL.
    ii. Then, the Parliamentarian will leave the room, and the BALs will come back. One BAL will lead the debate, while the other takes notes.
    iii. Lastly, the BALs will lead a debate on the review of the Executive Board as a whole.

F. After the debate has ended, the BALs will review the feedback given, all of which will be anonymous. They will review feedback from the concern form, along with information given during the debate.

i. The parliamentarian will have access to the document to add the feedback given on the BALs.

ii. The anonymous feedback will be presented to the Executive Board by the BALs at the next Executive Board meeting.

Section 6:
Additional Officers may be elected at the discretion of the Chapter

Section 7:
Election of Chapter Officers

A. Election of Chapter Officers shall be held at regular Chapter Meetings with nominations taken from the floor the regular Meeting prior

1. Nominees for a Chapter Officer position shall be permitted to give a speech limited to five (5) minutes prior to the vote

a. Changes to this limit can be made by a majority vote of Active Members present

B. A simple plurality vote of the Active Members present at a regular Meeting shall be required to elect the Officers.

C. In the event of a Member running unopposed, a vote shall still be taken, still requiring a simple majority for the Member to become elected

D. Officers shall be elected no later than the second to last meeting before the end of the semester

E. In the event of a vacancy, an election shall be held to fill that position within two regular Chapter Meetings of announcement of vacancy. The vacant position shall be filled prior to the election of any other position.

F. The election of an Initiate Advisor and an Initiate Historian shall be held each Fall and Spring semester, no later than the second to last meeting of the semester

G. The election of the Brothers at Large (BALs) will be conducted using the following procedure:

1. A roster of eligible Active Members will be sent out to the brotherhood before New Member Voting each semester. Brothers will mark every Member that they will feel comfortable serving as BAL. Afterwards, the votes will be tallied and the top five (5) grossing Members will be nominated for the position. If there is a tie, include that/those Member(s) in the nomination list.

a. The President will notify the nominees confidentially after the votes are tallied. Nominees will either accept or decline their nomination. If a nominee rejects their nomination, the next eligible Member will take their place. This process will occur before nominations are revealed to the Brotherhood.

2. Once the nominations have been determined, Members may choose to nominate themselves at that time to run for the BAL position. No one may nominate someone other than himself or herself at this time.

H. The election of staggered positions shall abide by the following procedure:

1. When first implemented for new positions or positions changed to a staggered election procedure, one Member must be elected for a one-semester term and a second Member will serve a two-semester term.
2. When continuing the staggered election one Member will be elected each semester for a two semester term with one Member serving a calendar year term and an academic year term
3. All other procedures will follow Article VI Section 6 A-D.

Section 8:
The term of office for each Chapter Officer, with the exception of the Initiate Advisor and the Initiate Historian, shall be one year. This year shall begin at the end of the Fall semester, to the next Fall semester. The Initiate Advisor's and Initiate Historian's terms of office shall be one semester.

Section 9:
Officer Removal:
Chapter Officers may be removed according to the terms in Article XI Section 3. Further disciplinary action regarding membership will be handled separately.

ARTICLE VII: Executive Board
Section 1:
The Executive Board shall consist of all elected Officers of Beta Rho Chapter. The Executive Board shall have the power to act on the behalf of Beta Rho Chapter on matters of immediate importance.

Section 2:
All Members of the Executive Board shall have voting privileges within the Executive Board itself.

ARTICLE VIII: Committees
Section 1:
Standing Committees exist from semester to semester. Each committee is overseen by a committee head elected through the procedure listed in Article VIII, Section 2. These Standing Committees are as follows:

A. Fundraising Committee:
   1. Plans Fundraising Events for Brothers to attend

B. Service Committee:
   1. Plans Service Events for Brothers to attend
   2. Appoints a Relay for Life Representative that will be in charge of planning and coordinating a Beta Rho Relay for Life team.
   3. Plans a Service Event during Founders Weekend.

C. Social Committee:
   1. Two (2) Brothers shall serve as Social Committee Chairs.

2. Plan Social/Brother-Bonding Events for Brothers to attend (three (3) of which must be sober events)
3. Work with Brother Historian to plan Homecoming events
4. Plan a Social Event during Founders Weekend

D. Marketing Committee:

1. Two (2) Brothers shall serve on the Marketing Committee as (1) Public Relations Chair, and (1) Graphic Design Chair.
2. The duties are as follows:
    a. Public Relations Chair:
        i. Work with co-chair to develop, implement, and execute marketing plans for the organization. This would include in-person marketing events such as: Flyers, Tabling, Chalking, etc.
        ii. Manage the social media accounts for Phi Sigma Pi (Instagram, Twitter, Facebook, Tiktok, etc..)
        iii. Monitor the public & the media's opinion of the organization
        iv. Plan PR campaigns and strategies and work with committee chairs, or other brothers planning events (Fundraising, Philanthropy, Recruitment, etc) to help them market their events to a wide audience
        v. Work with other members of the marketing team as needed
    b. Graphic Design Chair:
        i. Work with co-chair to develop, implement, and execute marketing plans for the organization. This would include in-person marketing events such as: Flyers, Tabling, Chalking, etc.
        ii. Create and sell all apparel/merchandise for Phi Sigma Pi.
        iii. Work with committee chairs to create t-shirts or other promotional products as needed. (Recruitment, Philanthropy, etc)
        iv. Work with other members of the marketing team as needed

E. Scholarship Committee:

1. Promotes continuous learning within the fraternity
2. Plans Scholarship Events for Brothers to attend
3. Plans at least one Scholarship trip
4. Plans a Scholarship Event during Founders Weekend

F. Intramural Committee:

1. Organizes and signs up Beta Rho intramural teams through UREC
2. Attends or arranges for someone to attend all intramural captains' meetings
3. Plans an annual Multiple Sclerosis sporting event (Fall semester).
4. The Intramural Chair will not have an outlined committee, but will serve alone.

G. Philanthropy Committee:

1. Coordinates and organizes all events concerning the Beta Rho Chapter Philanthropies
2. Plans the Multiple-Sclerosis Week
3. Plans an event that benefits the National Philanthropy

I. Events Committee:

1. Responsible for planning and implementing Founders Weekend
    (a) Founders Weekend should include, but is not limited to the following:
        i. Founders Banquet
        ii. At least one (1) Scholarship, one (1) Service, and one (1) Social Event to be planned by the respective Committees
    (b) Assist any other Committees with planning or executing various Founders Weekend events
2. Responsible for planning and implementing other special events, including Semi-Formal and Formal, throughout the year
3. The Committee Chair will serve on the Events Committee for one (1) academic year

J. Webmaster Committee:
1. Maintains Beta Rho Chapter and National Office sponsored websites
2. Prepares the voting program for New Member Voting
3. Educates the current President and Initiate Advisor on operating the New Member Voting program
4. Maintains and updates the official Beta Rho lists
5. Maintains and updates the online calendar
6. Develops and maintains relationships with information technology contacts
7. Pays the host server fee at the beginning of each fall semester
8. Ensures that the Treasurer receives notifications of online payments
9. Manages the generic email (pspbetarho@gmail.com)
10. The Webmaster will not have an outlined committee, but will serve alone.

K. Historian Committee:
1. Instills a deep sense of fraternal brotherhood through Brother-Bonding Events and other activities deemed appropriate for fostering greater fellowship
2. Responsible for planning one (1) brother retreat each semester
3. Plans a minimum of one (1) event for graduating Members each semester. This event is not exclusively for graduating Members to attend, but is focused around them.
4. Acts as the liaison between current Brothers and Beta Rho Alumni and works with Treasurer and Fundraising Committee to promote donations from Alumni
5. Keeps the Alumni email contact list updated
6. Works with the Social Committee to plan Alumni events including but not limited to homecoming and Founders events.
7. Maintains a monthly newsletter with interested Alumni.
8. Arranges housing for visiting Alumni during Alumni events
9. Maintains Alumni Facebook page.
10. Create and maintain relationships with other Chapters of Phi Sigma Pi by facilitating attendance and/or organizing at least one (1) Inter-Chapter Relations (ICR) Event per semester
11. Shall maintain awareness of Chapter operations within and outside of Beta Rho's region in order to provide knowledge to Beta Rho

12. Shall fulfill all requirements for planning and attending Regional Conventions and Conferences as set forth by the National Council

M. Diversity Equity and Inclusion (DEI) Committee:
1. Complete the Leadership in Action modules from the Phi Sigma Pi DEI Inclusion series
2. Administer an anonymous brother survey regarding DEI in our chapter each semester
3. Implement ongoing Google Forms for suggestions, critiques, and concerns regarding DEI in our chapter
4. Work with the Scholarship Chair to conduct at least one DEI Scholarship event per semester
5. Work with the Recruitment Chair to establish a DEI Recruitment model
6. Work with the Service Chair to complete at least one DEI Service Event per semester
7. Work with the BALs to be a resource for initiates, brothers, and alumni in fostering conversations about DEI.
8. The DEI Chair will not have an outlined committee, but will serve alone.

N. Recruitment Committee:
1. Two (2) Brothers shall serve as Recruitment Chairs.
2. Must plan two (2) information sessions and four (4) recruitment events.
3. Work with the Marketing Chairs to create flyers/emails to spread information across campus and create other promotional products.
4. Must be present at New Member Voting to present the PNM Slideshow.
5. Brothers who volunteer to serve on this committee accept the short duration of the committee and commit their availability during the recruitment period.

Section 2:
Election procedures of Committee Chairs and Recruitment Chair(s) are as follows:

A. Election of Committee Chairs and the Recruitment Chair(s) shall take place at an extended voting session, in place of any regular chapter meeting held after Executive Board voting has been completed.
    1. If no rooms are available on those Sundays, the Brother Historian and Parliamentarian will work together to select an alternative time.
        a. The voting session must be booked for at least 3 hours.
    2. The voting session will be a mandatory event for active Brothers.

B. The Vice President will give a brief overview of each role's responsibilities before each position's nominees give their speeches.
1. Nominees will be in the room for the overview, and will then be directed by the Vice President to step out of the room until it is their turn to speak.

C. Nominees will have 1 minute to provide a personal introduction at the beginning of running for their first position of the night.
    1. This is a time for them to express who they are, their desire to serve the Brotherhood and to highlight broad skills (i.e. teamwork, collaboration).
        a. Parliamentarian will verbally cut off any nominee who exceeds the 1-minute limit.

D. Nominees will have 2 minutes to present their specific plans, new ideas, and explain how their relevant past experiences would benefit them in the role, for each position they run for.

1. Parliamentarian will give a '1 minute remaining' warning by raising a placard and will verbally cut off any nominee who exceeds the overall 2-minute limit.

F. A simple plurality vote of the Active Members present at a regular Meeting shall be required to elect the Officers.

G. In the event of a Member running unopposed, a vote shall still be taken, still requiring a simple majority for the Member to become elected.

H. Committee Chairs and Recruitment Chair(s) shall be elected no later than the second to last meeting before the end of the semester.

I. In the event of a vacancy, an election shall be held to fill that position within two regular Chapter Meetings of announcement of vacancy. The vacant position shall be filled prior to the election of any other position.

Section 5:

There will be a mandatory meeting at the end of each semester between the existing Committee Chairs and the newly elected Committee Chairs with the purpose of passing down any pertinent information, documents, etc.

ARTICLE IX: Meetings

Section 1:

The following rules shall be followed for conducting regular Chapter Meetings:

A. The National Constitution,
B. The National Operating Policies,
C. The Beta Rho Chapter Bylaws, and
D. Robert's Rules of Order, latest edition.

Section 2:

The date, time, and place of all regular Chapter Meetings shall be called by the President with the agreement of the Beta Rho Chapter at the first Meeting of each semester. The date of the first scheduled Meeting of the following semester shall be called by the President at the last Meeting of the present semester.

Section 3:

Seven (7) minutes of leniency will be given past the set start time of all Meetings.

A. After seven minutes of tardiness, attendance will not be counted and the absence shall be marked unexcused.
B. Brothers shall also be marked absent for Chapter Meetings should they leave before the start of the reading of kudos.

Section 4:

Voting privileges will not be given to Members who miss any part of the voting procedure for the respective Executive and Committee Chair position.

Section 4:
Quorum:
A quorum shall consist of a simple majority of the membership plus half of the officers. No votes may be taken in absence of a quorum.

Section 5:
Meeting Minutes:
Meeting minutes shall be recorded by the Secretary and stored in a Google Drive account designated to the position. Minutes will be distributed to Chapter Members via weekly Mass or as otherwise determined by the Vice President.

ARTICLE X: Finances
Section 1:
Semester Dues:

A. Active and Locally Inactive Members of Beta Rho Chapter shall pay National Semester Dues each semester of the academic year. These monies shall be paid through the Beta Rho Chapter Treasurer.

B. Beta Rho Chapter shall levy additional Chapter Semester Dues, in accordance with Chapter needs. All Members will be notified of the Chapter Dues policy and the due date sufficiently in advance. If the Member fails to pay dues at or before the day of new Member voting and has not made special arrangements with the Chapter Treasurer, a late fee of five dollars ($5.00) will be charged by the Chapter; Members not paying Dues two weeks after the due date will be put on Membership Probation; and if a Member fails to pay Dues within one month of the due date, they will face expulsion by the Chapter.

C. If a Member of Beta Rho Chapter submits a check for payment and the check bounces, the Member is responsible to pay in the form of a money order the amount of the bounced check plus twenty-five dollars ($25.00) within one week of notification by the Treasurer.

Section 2:
Induction Fees:

A. The National Induction fee for a Member shall be paid when the Initiate turns in their Initiation book, which must be before the time of Formal Induction. Beta Rho Chapter, through its Treasurer, shall pay all Induction Fees to Phi Sigma Pi by the deadline determined by the National Council.

B. Beta Rho Chapter may levy an additional Induction Fee, in accordance with Chapter needs.

Section 3:
A minimum balance of two hundred dollars ($200.00) or what is required by the financial institution shall be on hand at all times to provide for any emergency allocations which may occur.

Section 4:
Beta Rho Chapter's fiscal year begins July 1 and ends June 30. The financial policies of Beta Rho Chapter shall be governed by a budget adopted at the beginning of each year.

Section 5:
Megan Elizabeth Stidham Memorial Scholarship:

A. The Beta Rho Chapter will work to endow a scholarship in memory of Megan Stidham.
B. The scholarship will have two recipients who must be Brothers in Phi Sigma Pi.

Section 6:
Beta Rho Chapter shall allocate funds in the yearly budget to provide two full registrations to attend the National Convention. The Treasurer and Executive Board shall reimburse travel and other expenses on an individual basis as decided.

Section 7:
Beta Rho Chapter will keep a debit card to be used in order to facilitate purchases. The rules for handling the debit card are as follows:

A. The card can be handed out for amounts greater than $15. The treasurer is obliged to get the receipt for the transaction after the card is returned.
B. The card must be returned at most a day after the transaction took place; otherwise the Member who had the card loses these privileges.
C. The Treasurer must keep a sign in/out log and the amount spent
D. The card may only be handled by Committee Chairs and Executive Board Members.

Section 8:
Subrosa Fund:

A. The Beta Rho Chapter will work to endow a Chapter Subrosa fund that will provide assistance to Brothers or Initiates in times of emergency or financial hardship, in order to allow them to remain active members of Beta Rho.
B. Brothers will be permitted to make anonymous donations to this fund at any time, on a volunteer basis.

Section 9:
Bank Accounts:
The Beta Rho Chapter shall maintain a bank account for the storage and allocation of Chapter funds. The account shall be managed and owned by the Treasurer. The Chapter President shall be granted access to login information in addition to the Treasurer to monitor Chapter funds as necessary.

ARTICLE XI: Disciplinary Actions of the Chapter
Section 1:
Beta Rho Chapter shall abide by the federal, state, county, and municipal laws, and shall adhere to the James Madison University Code of Conduct.

Section 2:
The Executive Board shall notify the Member accused and the official Chapter Advisor if there is to be a hearing to impeach, suspend, or expel a Member of Phi Sigma Pi. The notice shall advise them of the time and place when Beta Rho Chapter shall hear the case.

Section 3:
Discipline Hearing Procedures:

A. Chapter Officers may be removed from office by impeachment for failure to fulfill the duties of their respective offices. All Members shall be suspended or expelled based upon the severity of the offense as determined by the Trial Board.

B. A motion calling for impeachment, suspension, or expulsion shall be accepted from an Active Member. This motion must be accepted by two-thirds (2/3) vote of the Active Members before any further action can be taken.

C. A Trial Board shall be convened to investigate the validity of the motion for impeachment, suspension, or expulsion. The Trial Board shall consist of eight (8) Active Members and one (1) Officer, all of whom are chosen at random (not including the accused). For further information regarding Trial Boards, see Robert's Rules of Order, Revised.

D. The Trial Board shall meet within two weeks of convening. The Trial Board shall investigate the charges and make a recommendation to the Chapter within two (2) regular business meetings. The Trial Board shall give both the accused and the accuser time to present their positions in relation to the case in order for the Trial Board to reach an objective decision.

E. After the Trial Board makes its recommendation, it shall take a two-thirds (2/3) vote of the entire Active Membership to impeach the accused. Suspension and expulsion require a three-fourths (3/4) vote of the entire Active Membership. If the accused is impeached, immediate resignation from office will be required.

Section 4:
Brother Review

A. Will be conducted at any point in the semester.
B. All violations should be brought forward, including but not limited to:
    1. Alcohol policy strikes, missing events (Scholarship, Service, Fundraising, Initiate, mandatory, regular Chapter Meetings), unpaid fines (including things such as t-shirts that people sign up for and do not buy), unpaid dues, Brother status (Active or currently on probation), etc.
C. The Brother up for review must be given a warning two weeks in advance that they will be up for Brother Review.
D. At Brother Review, all Brothers under question may defend their positions as if they were going on probation
E. The Active Brotherhood will then proceed to pro/con debate whether to expel or not expel Brothers.
F. The Active Brotherhood will then vote on each Brother up for review

1. A three-fourths (3/4) majority vote is needed to expel the Brother from the Beta Rho Chapter of Phi Sigma Pi
2. If the Brotherhood votes not to expel the Brother in question, that Brother will remain on probation with additional requirements as determined by the Executive Board

G. The use of exclusionary Committees will be used in special cases as determined by the Executive Board

Section 5:
Initiate Review

A. Will be conducted at any point in the semester.
B. Seven out of the ten Executive Board Members must be in agreement that an Initiate Review is warranted.
C. All violations should be brought forward, including but not limited to:
    1. Alcohol policy strikes, unexcused absences, unpaid dues, acts of violence, harassment, or discrimination, disrespect towards other Initiates or Brothers, etc.
D. The Initiate up for review must be given a warning one week in advance that they will be up for Initiate Review.
E. At Initiate Review, all Initiates under question may defend their positions as if they were going on probation.
F. The Active Brotherhood will then proceed to pro/con debate whether to remove or not remove Initiates.
G. The Active Brotherhood will then vote on each Initiate up for review
    1. A three-fourths (3/4) majority vote is needed to remove an Initiate from the Beta Rho Chapter Initiate Program of Phi Sigma Pi.
    2. If the Brotherhood votes not to remove the Initiate in question, that Initiate will remain on probation with additional requirements as determined by the Executive Board.

ARTICLE XII: Parliamentary Authority

The rules contained in the current edition of Robert's Rules of Order, Newly Revised, shall govern Phi Sigma Pi in all cases to which they are applicable and in which they are not inconsistent with the National Constitution, Beta Rho Chapter Bylaws, and any other special rules of order Phi Sigma Pi may adopt.

ARTICLE XIII: Amendments

These Bylaws may be amended at any regular or special Chapter Meeting by a two-thirds (2/3) vote of the Active Members, provided the amendment was submitted in writing to the entire Chapter at the previous regular Meeting. All amendments must be approved by the Commission on Student Services at James Madison University. If these Bylaws are found to have any typographical or grammatical errors, the Parliamentarian has the power to correct them without passing an amendment, so long as the scope of the bylaw does not change.

ARTICLE XIV: Ratification

The Bylaws shall become effective upon approval by the Beta Rho Chapter of Phi Sigma Pi National Honor Fraternity, the Commission on Student Services, and the President of James Madison University. Ratified constitutions must be uploaded to the Be Involved organization page in a timely manner after substantial amendments and submitted each year with Annual Organization Registration.

ARTICLE XV: Alcohol and Drug Policy

Section 1:

Defined Terms:

A. Planned Social Event - constitutes any planned Social Event where Chapter funds are used in any form (excluding the purchase of alcohol).

1. Social events with the exception of a sponsored formal must not include the presence of alcohol.

B. Sober - the condition of a Brother or Initiate where NO alcohol or illegal substances has been consumed, whether 12 hours before or during the event.

1. Sober monitors shall be present and selected in the manner determined in Article XV, Section 2, Letter A at formal events with alcohol

Section 2:

Planned Social Events

A. Selection of sober monitors

1. Two sober monitors will be required for every fifty (50) Members and Initiates at any social function, with one (1) sober Member for every twenty five (25) Members and Initiates thereafter.
2. First selections made on a volunteer basis.
3. If volunteers do not meet the required number of sobers for an event, then Members will be selected based upon their Initiate Classes. The oldest Member of the most recent Initiate Class will be chosen to be a sober monitor
4. There will be one (1) sober representative of the Executive Board working each event in addition to the sober Members described in Article XV, Section 2, Letter A, number 1**.**
5. If chosen as a sober, the Member is responsible for working the event or finding a replacement and notifying the Executive Board of the change prior to the event.

B. Duties of Sobers:

1. To the best of their ability, the sober must ensure that other Members arrive to their mode of transportation safely.
2. Sobers have the authority to use their opinion to act in the best interest of the fraternity in order to ensure attendees conduct themselves in a responsible manner and treat the facilities with courtesy, while respecting the rules of the facility.
3. Ensure safety of attendees
   (a) Control rowdiness or other behavior detrimental to a person's well-being

(b) Discourage any disrespectful behavior towards other guests at non-exclusive Beta Rho events.

5. Sobers monitors must be at the planned event for the entire duration.

C. Conduct of Brothers

1. All Members should treat sober monitors with respect and adhere to any advice given to them by sober monitors.

2. All Members are expected to represent and follow the guidelines set forth by the Chapter, James Madison University, and the National Constitution in respect to alcohol policies..

4. Members not adhering to the policies listed in Article XV will be subject to review by the Executive Board.

D. Recruitment and Initiation

1. Alcohol shall be strictly prohibited from any Membership Drive event (including all Recruitment and Initiation Events and activities).

a. No Initiate or Potential New Member shall be subjected to the use of alcohol or drugs in the presence of a Beta Rho Member. Violation of this policy will result in a meeting between the initiate, Initiate Advisor (IA), Initiate Historian (IH), Big Brother, and other involved Member(s) to determine further action.

E. No alcoholic beverages may be purchased through Chapter funds nor may the purchase of same for Members or guests be undertaken or coordinated by any Member in the name of or on behalf of the Chapter

F. No Chapter Members, collectively or individually, shall purchase for, serve to, or sell alcoholic beverages to any minor (those under legal “drinking age”).

G. Items containing Phi Sigma Pi letters (clothing, hats, jewelry, cups, and other accessories) are not to be worn or used in the presence of alcohol or while consuming alcohol unless it is a formal occasion.

H. The possession, sale, or use of any illegal drugs or controlled substances during a Fraternity event or at any event that an observer would associate with the Fraternity is strictly prohibited.

I. The possession and use of alcoholic beverages during a Fraternity event, in any situation sponsored or endorsed by the Chapter, or in any event an observer would associate with the Fraternity, must be in compliance with any and all applicable federal, state, county, and city laws and regulations of the institution of higher education and must comply with the previous stated Chapter Bylaws.

Section 3:

Penalties for Violation of Alcohol Policy

A. Three (3) strike system for Members

1. First strike: One (1) extra sober assignment

2. Second strike: Probation from planned Social Events for the remainder of the semester

3. Third strike: Expulsion

B. Initiate Policy after each consecutive violation

1. Meeting with Big Brother and Initiate Advisor
2. Meeting with the Beta Rho Chapter
3. Initiate Review

ARTICLE XVI: Risk Management & Hazing Policy

Phi Sigma Pi, in keeping with JMU's expectations for a positive academic and social environment, unconditionally opposes hazing and other organizational misconduct. No individual member of our group or the group itself may engage in any activity or behavior that may violate any university policy.

All members, officers, advisers and affiliates of Name of Organization are required to follow the *Standards of Conduct & Policies*, as outlined in the JMU Student Handbook. The most up-to-date policy definitions can be found here:
https://www.jmu.edu/osarp/handbook/osarp/standardsandpolicies.shtml

The most up-to-date definition of the university Hazing policy can be found here:
https://www.jmu.edu/osarp/handbook/osarp/standardsandpolicies.shtml#Set-2-A-hazing

Any member, officer, adviser and/or affiliate can report an allegation of hazing or other organizational misconduct to the Office of Student Accountability & Restorative Practices (OSARP). More information on reporting, including information about anonymous reporting, amnesty processes related to certain reporting, and campus and community resources for those who are considering a report can be found on the OSARP website:
https://www.jmu.edu/osarp/reportingosarp/index.shtml#organizational

This section is hereby incorporated as part of this constitution and will serve as a guide for action by the university and Name of Organization if there is an instance of hazing or other organizational misconduct by this organization or any of the members of this organization. It will be the duty of the officers of Name of Organization to educate the membership regarding the Standards of Conduct and Policies in the JMU Student Handbook.

Phi Sigma Pi Beta Rho Chapter strictly prohibits its Members from any form of hazing. Hazing is considered destructive to the morals and characters of our Members and Potential New Members. Engaging in acts of hazing can lead to expulsion or suspension of the Chapter and/or individual Member. Phi Sigma Pi does not tolerate or condone sexually abusive behavior by Members or Initiates whether physical, mental, or emotional. This is to include any actions that are demeaning to any person, which would constitute sexual harassment of any type or form.

Section 1:
Defined Terms

A. Hazing:

1. Any action taken or situation created, intentionally to produce mental, emotional, or physical discomfort, embarrassment, harassment, fright, humiliation, ridicule, or possibly cause physical harm or injury.
2. Any mental or physical requirement, request, or obligation placed upon any person that could cause pain, disgrace, or injury.
3. Engaging in acts of degradation such as required nudity, partial stripping, rules forbidding bathing, and games played while someone is in a state of undress.
4. Requiring that Members perform sexist, racist, or other discriminatory acts.
5. Requiring Members to wear degrading or unusual clothing or objects; requiring Members to ask Members or non-Members to sign personal articles of clothing or flesh; force Members to carry burdensome objects such as paddles, concrete blocks, live animals, and so forth.
6. Any activity that violates the alcohol and drug policy outlined in Article XV: Alcohol and Drug Policy
7. Prohibited activities include but are not limited to: paddling in any form, creation of excessive fatigue, physical and psychological shock, scavenger hunts which involve illegal activities, one-way road trips which leave an individual to find return transportation, kidnapping of Initiates by Members or kidnapping of Members by Initiates, wearing apparel at any time or location which is not appropriate, required engagement in public stunts, morally degrading games or humiliating activities, compulsory consumption of any alcoholic beverages or controlled substances or non-controlled substances, and any other activities which are not consistent with Phi Sigma Pi policy, Ritual, or the regulations and policies of the educational institution.
8. Mental hazing would include, but would not be limited to, the activities and procedures included the following statement of policy:
    (a) There shall be no pre-Induction activities on the day or evening prior to the Pinning or Induction that would cause persons to be physically or mentally fatigued;
    (b) Activities during the Initiation Program shall be limited to those which attempt to increase an individual's knowledge of Phi Sigma Pi and its ideals; these activities must be carried out in a dignified manner and must show proper respect for another person as an equal.
    (c) At no time during the Initiation Program is there to be verbal abuse of an individual, including shouting, screaming, and the use of profanity.
9. Any activity that violates federal, state, local statutes, or university policies
10. This is not an all-inclusive list of prohibited forms of hazing. An action can be deemed hazing by review of the Executive Board, thus being subject to disciplinary action.

B. Sexual Harassment or Abuse

1. This includes but is not limited to any unwanted sexual advance, request for sexual favor, any physical or verbal insinuation of a sexual nature, or any reference to sexual gender or orientation.

2. Verbal sexual harassment or abuse includes but is not limited to suggestive whistling, sexual humor, sexual innuendos that appeal to someone's appearance or activities, sexual gestures, sexual sounds, or obscenities.

3. Physical sexual harassment or abuse includes but is not limited to touching or groping, brushing against someone else's body, coercion, assault, and rape

C. Alcohol and Drug Policy: See Article XV: Alcohol and Drug Policy

Section 2:
JMU Anti-Hazing Statement:
The Beta Rho Chapter, in keeping with JMU's expectations for a positive academic and social environment, unconditionally opposes hazing. No individual member of our group or the group itself may engage in or plan any activity that may be defined as hazing.

The Beta Rho Chapter opposes any situation created intentionally to produce mental or physical discomfort, embarrassment, harassment or ridicule to its members or potential members. In addition, no individual nor recognized organization may, by physical or mental stress or by subtle or covert technique, impair, make captive, or destroy an individual's freedom of thought and choice.

J17-100 Hazing: The university prohibits any situation created intentionally to produce mental or physical discomfort, embarrassment, harassment or ridicule in connection with or the purpose of initiation, admission into, or affiliation with or as a condition for continued membership in a club, organization, or association, regardless of whether the students participated voluntarily in the relevant activity. Students directing, engaging in, aiding, or participating in, actively or passively, the forcing, compelling, requiring, encouraging, expecting, whether direct or implied, of individuals to participate in hazing activities shall be considered in violation of this policy. It is impossible to anticipate every situation that could involve hazing. Behavior listed below does not, and cannot encompass every circumstance that can be categorized as hazing. Further, this policy is not intended to prohibit customary athletic events, contests, and competitions that are sponsored by the institution or the organized and supervised practices associated with such events or activity or conduct that furthers the goals of a legitimate educational curriculum, extracurricular program, or military training program as approved by the University.

Hazing activities include but are not limited to; physical abuse; kidnapping, blindfolding, confinement, or binding and/or restricting movement; calisthenics or other strenuous physical activity used to harass, punish, or harm an individual; excursions; spraying, painting, or pelting with any substance; burying in any substance; nudity; servitude; exposure to uncomfortable elements; verbal abuse or harassment; wearing of apparel which is conspicuous or indecent; forcing consumption of any legal or illegal substance (e.g. food, liquid, beverage, alcohol, drug, or other substance); depriving of sufficient sleep; burning, branding, or tattooing; interrogation in an intimidating or threatening manner; misleading members in an effort to convince them that they will not become or remain members unless they complete tasks, follow instructions, or act in a certain way; misleading members into believing that they will be hurt during induction or initiation; carrying items that serve no constructive purpose or that are designed to punish or embarrass the carrier; requiring or suggesting obtaining, possessing items or completing tasks in

an unlawful manner (i.e. scavenger hunts); any act that is designed to or likely to compromise the dignity of a member or prospective member, cause embarrassment or shame to a member or prospective member, cause a member or prospective member to be the object of malicious amusement, ridicule, or emotional strain, or cause psychological harm or substantial emotional strain; or any other activity which may result in physical injury or endanger the health or life of the individual being hazed.

An individual cannot consent to being hazed; a victim's voluntary or willful participation in hazing activities will not be considered evidence that a violation of this policy did not occur.Section 18.2-56 of the Code of Virginia declares hazing illegal, establishes conditions for civil and criminal liability, and outlines the duties of the university when a student has been found guilty of hazing in civil or criminal court.

It is hereby incorporated as part of this constitution and will serve as a guide for action by the university and The Beta Rho Chapter if there is an instance of hazing by this organization or any of the members of this organization. It will be the duty of the officers of The Beta Rho Chapter to educate the membership of this policy.

Section 3:
Consent

A. Consent is never a defense to hazing. Requiring a Member to consent to hazing activity is strictly prohibited. Any Member or Chapter requiring an Initiate or another Member to consent to a hazing activity is subject to discipline under this policy. This includes implying or insinuating at performing an activity that an Initiate or Member does not want to do.

B. Consent can also be defined as voluntarily agreeing to engage in sexual activity. An individual cannot give consent when:

1. Incapacitated by any drug or intoxicant
2. Compelled by force, threat of force, or deception
3. Unaware that the act is being committed
4. Mentally impaired or lacking the physical ability to resist or consent
5. Compelled by threats regarding membership, social status, etc.

Section 4:
Education

A. All Members, Initiates, Chapter Advisors, and honorary Members will be instructed about the Risk Management Policies to the best of Beta Rho's abilities.

B. The Chapter will present at least four risk management educational programs each academic year, two of which must focus on alcohol awareness.

C. An alcohol awareness program must be presented to the entire Initiate Class as a part of the Chapter's Initiation Program.

D. Each Member and Initiate will read and sign the Phi Sigma Pi Risk Management Agreement (Form 20/20A or 21/21A). The original will be sent to National Headquarters by the specified due date and a copy will be kept in the Chapter files.

E. The Initiation Program and its activities will be reviewed at the beginning of each semester to ensure all activities, events, and tasks are free from prohibited activities.

Section 5:
Emergency Management

A. Each Member and Initiate will complete an Emergency Contact Form at the beginning of each semester, and complete the necessary information for the Emergency text messaging system.

B. An Emergency Management Plan will be established and reviewed at the beginning of each semester. This plan must include contact information for emergency services, the Chapter President, Chapter Advisor, and National Headquarters, and procedures for handling emergency situations and incident reporting.

C. A person in charge will be designated in advance for any Chapter Event and will be responsible for handling emergency situations.

D. An Incident Report must be completed after any emergency situation to be forwarded to National Headquarters (via Chapter Consultant) and to be kept with the Chapter files.

Section 6:
Disciplinary Procedures

A. Any violation of Phi Sigma Pi's National Risk Management policies or the Chapter's Risk Management policies must be addressed by the Chapter through disciplinary procedures.

B. Any violation of Risk Management policies must be reported to the Chapter President. If the Chapter President or other Chapter Officers are involved in the violation the highest-ranking Chapter Officer not involved should be informed.

C. Once reported the Chapter President or other Officer will inform the Chapter of the violation and begin disciplinary procedures.

D. Violating Risk Management policies is considered conduct unbecoming of a Brother and a motion will be made to charge the Member(s) violating risk management policies accordingly.

E. All violations of the Risk Management Policy are subject to disciplinary action procedures outlined in Article XI: Disciplinary Actions of the Chapter.

ARTICLE XVII: Dissolution of Chapter

Dissolution of the Beta Rho Chapter shall be voted on with a ¾ vote by membership. Funds left in the Chapter bank/Venmo account(s) shall be donated back to the Phi Sigma Pi National Office or an organization determined by the Executive Board by a unanimous vote.

ARTICLE XVIII: Virginia policy

Section 1:
Under no circumstances will any prohibited practices of Virginia State Law's Alcoholic Beverage Control Act be accepted. All laws and regulations referenced at http://law.lis.virginia.gov/vacode/title4.1/chapter3/ will be prohibited by Members of the Beta Rho Chapter of Phi Sigma Pi.